Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1356
Claimant:	Jason Green
Adjuster:	Chelsea Hebert

September 29, 2023 - Claim opened following report of a side impact collision at a signalized intersection. Insured vehicle was struck on the driver side by a vehicle that entered from the cross street. Police report requested. Initial liability appears to favor the insured pending witness statements.

October 8, 2023 - Recorded statement obtained from insured. Insured states the light was green for their direction of travel. Photos of both vehicles received showing damage to the driver side door, quarter panel and rear wheel well on the insured vehicle. Tow yard location confirmed and vehicle inspection scheduled.

October 10, 2023 - Claimant has retained counsel. All further communication to be routed through the attorney's office. Attorney letter of representation received and logged. Medical authorization and bodily injury demand package requested from counsel. Claimant reports lower back strain with muscle spasm and limited ragne of motion. Treating physician records requested.

October 19, 2023 - Field appraisal completed on insured vehicle. Estimate prepared for body and frame repairs. Rental coverage confirmed under insured policy. Adverse carrier contacted to discuss liability allocation and subrogation interest. Their insured disputes signal status and has indicated a possible counterclaim.

October 24, 2023 - Independent intersection video obtained from nearby business and reviewed. Footage appears to support insured's account of the signal phase. Liability assessment updated to reflect majority fault on the other driver. Reserve adjusted for property damage and bodily injury exposure. File referred for supervisor review before any settlement discusison with counsel.

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Recorded Statement

Claim number:	C-1356
Statement of:	Jason Green
Taken by:	Chelsea Hebert
Date:	September 30, 2023

Q: Thanks for taking the time to speak with me today. This recorded statement is about the collision at the intersection in Conroe. Can you confirm you're comfortable being recorded?

A: Yes, that's fine.

Q: Good. Can you walk me through what happened before the impact?

A: I was driving through the intersection on a green light. The light had been green for a little while, and I was going at a normal speed, maybe thirty-five or so.

Q: Did you see the other vehicle before the collision?

A: Not until the last second. It came from my right side and went through the red, I think. I hit the brakes but there wasn't enough time.

Q: Where did the impact land on your vehicle?

A: On the driver's side, the front door area. The airbags did not go off, but the whloe car shook.

Q: How did you feel right after the collision?

A: I was sore in my lower back almost rihgt away. I could still move, but it got worse over the next day or two.

Q: Have you seen a doctor or received any treatment since?

A: Yes, I went to urgent care the same day and then I've been seeing my family doctor. They diagnosed a back strain and gave me muscle relaxers and told me to do physical therapy.

Q: Do you have any prior injuries or problems with your lower back?

A: No, nothing serious. I had some stiffness years ago but nothing that required treatment.

Q: Is there anything else you'd like to add?

A: Just that the other driver should have stopped. I'm still dealing with the pain, and it's affecting how I sleep and work.

Q: Thank you. That concludes the statement.

A: Thank you.